GETBUCKS MICROFINANCE BANK LIMITED
versus
BROBONDO (PRIVATE) LIMITED
and
GLOOSTONE INVESTMENTS (PRIVATE) LIMITED
and
KENNETH NGOVE
and
BLESSING CARRINGTON MADANHE

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
MUSHURE J
HARARE; 3,12 February & 24 April 2026

Leave to appeal

L. Madhuku for the applicant
R. T. Mutero for the respondents

MUSHURE J:

INTRODUCTION

[1] On 10 September 2025, I removed the applicant's claim for provisional sentence filed under HCHC455/25 (the main matter) from the unopposed roll and referred it to the opposed roll. The applicant seeks leave to appeal against that referral on the grounds that I erred and misdirected myself 'in referring the matter to the opposed roll simply because a Notice of Opposition had been filed, contrary to the procedural framework laid down in the High Court Rules governing the conduct of provisional sentence proceedings' and that I erred 'in failing to appreciate that the purpose and essence of provisional sentence proceedings is designed to provide speedy relief to a Plaintiff armed with a liquid document hence the court is still at large to consider and decide whether provisional

sentence should be granted or not despite the filing of a Notice of Opposition by a Defendant'.

BACKGROUND

[2] On 6 August 2025, the applicant issued summons in the main matter for provisional sentence claiming, from all the respondents, the payment of US$242 737,40, being an amount outstanding and due to the applicant as at 29 July 2025, together with interest at the agreed rate of 10% per month calculated from 30 July 2025 to date of full payment.

[3] The applicant claimed that on 20 January 2025, the first respondent executed an acknowledgement of debt in the sum of US$726 000.00, payable in six monthly instalments from February 2025 to July 2025. The second respondent bound itself as a principal and co-principal debtor, while the third and fourth respondents bound themselves as guarantors and co-principal debtors for the fulfilment of the first respondent's obligation to the applicant.

[4] The applicant claimed that the first respondent had failed to repay the amount due by way of instalments as provided for in the acknowledgement of debt and that in terms of the acknowledgement of debt, in the event of default, the whole amount outstanding became due and payable. Further, in the event of default, a certificate signed and prepared by the applicant's representative detailing the amount outstanding would be *prima facie* proof of the amount due for the purposes of provisional sentence.

[5] The applicant claimed, further, that the second respondent had, pursuant to the requirements of the acknowledgement of debt, executed an irrevocable special Power of Attorney providing for the sale of its three pieces of land and that on 20 March 2025, the second respondent had passed a Surety Mortgage Bond in favour of the applicant, in terms of which the second respondent guaranteed the obligations of the first respondent and mortgaged the properties in favour of the applicant. The applicant wanted these properties and the special Power of Attorney to be declared specially executable.

[6] The claim was opposed by the first to the fourth respondents who argued, in *limine*, that the provisional sentence procedure is unconstitutional; that the claim was not based on an acknowledgement of indebtedness; and that there was no cause of action against the fourth respondent. On the merits, the respondents argued that the matter raised material and

serious disputes of fact which were incapable of resolution on the papers namely that the parties entered into a compromise agreement subsequent to the issuance of the instruments of indebtedness and that the applicant had waived the rights that it was now seeking to enforce. The respondents contended that the amount the applicant was claiming was at variance with the amount stated in the acknowledgment of debt, showing that some amounts had been paid but the applicant had omitted the statement of those payments. The respondents contended, further, that there was a dispute concerning the payments, as a result of which the applicant's and the first respondent's officials had met and discussed the matter. The parties had resolved that the outstanding amount was not accurate since it did not capture payments made, and that this would affect the interest component as well. The respondents averred that this agreement constituted a compromise so the applicant could no longer rely on the acknowledgement of debt and the certificate it authored. The applicant, the respondents further averred, had undertaken to review its accounts and revert to the first respondent.

[7] The first respondent argued that until such a reconciliation was done, the applicant had no cause against it or the other respondents. It argued that the fact that the acknowledgement of debt upon which the claim was based contained an amount different to the one contained in the certificate of indebtedness meant that the claim was not liquid. It further argued that to the extent that the certificate of indebtedness was a unilateral document prepared by the applicant, it could not be a liquid document. It contended that a liquid document could only be a document authored by a defendant or at the very least, at their instruction.

[8] At the hearing of the main matter, the respondent raised a further preliminary point that the matter had been set down on the wrong roll in light of the provisions of r14 (6) of the High Court Rules, 2021 to the effect that matters for provisional sentence shall be set down on a roll assigned for such matters, not being a day assigned for unopposed matters. I sought comments from the parties on the provisions of r64 (2) (a) which provides that uncontested cases for provisional sentence may be set down for hearing in Harare, on any Wednesday, by filing a notice of set down with the registrar not later than the Friday preceding the Wednesday of set down, in response to which the respondent's counsel referred to the decisions of this court in *Spar Harare Private Limited t/a Spar Eastern Region* v *Munava*

Enterprises Private Limited & Ors HH784-16 and *Mazengwa* v *Njanike* HH618-23 wherein the matters were heard on the opposed roll. It was further argued that there were averments made on oath which could not be countered by counsel from the bar but there was need to file the necessary answering affidavit and heads of arguments so that the matter could be properly ventilated.

[9] Opposing the preliminary point, the applicant argued that it was common cause that as a matter of practice, provisional sentence matters were assigned a specific portion on the unopposed roll so in essence, the separate roll was there but it was then merged with the roll of unopposed matters. On referral to the opposed roll, it was submitted that there is a difference of opinion, with some judgments holding that once there is an opposition, a provisional sentence summons must be referred to the opposed roll and the other judgments holding that if a matter is opposed, the court was at large to look at the opposition itself bearing in mind that in provisional sentence cases, matters were supposed to be dealt with expeditiously. It was submitted on behalf of the applicant that the court had the discretion to look at the opposition to see whether the opposition had merit warranting referral to the opposed roll, or it had been filed as a delaying tactic.

[10] It was further submitted that nothing precluded the court from hearing the matter, particularly if regard was had to the nature of the respondents' opposition in *casu*. The court was urged to proceed and deal with the matter. With regards the applicability of r64 (2) (a), it was submitted that at the time the matter was set down, it was uncontested, so it was properly set down. It was submitted, further, that there was no defence *per se* and time and value would be lost if the matter was referred to the opposed roll. I raised issue in relation to the respondents' argument that the matter was not based on a liquid document but referred to some other statement prepared by the applicant, to which the applicant's counsel responded that the respondents had in the same Notice of Opposition acknowledged that there was an instrument acknowledging indebtedness. Responding to the argument that the parties had entered into a compromise agreement, it was submitted that the acknowledgment of debt was clear that any subsequent agreement had to be in writing but the respondents were relying on an oral agreement. It was contended on

applicant's behalf that there was no evidence to show that there was a compromise agreement.

[11] In response, it was argued that *Al Shams Global BVI Ltd* v *Equity Properties (Pvt) Ltd* 2013 (2) ZLR 131 (H) was clear that once there is an opposition, the matter should be referred to the opposed roll. It was accepted that there is a divergence of opinion on the procedure for dealing with opposed summons for provisional sentence and there was a judgment reserved by WAMAMBO J in relation to the set down of provisional sentence matters on the unopposed roll. It was argued that in this matter, pertinent issues had been raised in the opposing affidavits and this triggered r14 (7) of the High Court Rules. On the issue of the expeditious resolution of disputes, it was suggested that the Judge sitting in motion court could case manage an opposed summons for provisional sentence matter so that it would be heard expeditiously.

[12] After considering the submissions made by the parties, I took the view that since judgment had been reserved in relation to the interpretation of r14(6), it was prudent to wait for that judgment, also bearing in mind that the matter before me had been opposed. I also took the view that WAMAMBO J's judgement would authoritatively speak on whether or not provisional summons matters ought to have a separate roll *vis a vis* the practical realities in the High Court. On the issue of referral to the opposed roll, in light of the averments made by the respondents in their opposing papers, I was more inclined to follow the reasoning that contested cases for provisional sentence have previously been heard as opposed applications as demonstrated in various judgments of this court: See for instance *Al Shams Global BVI Ltd v Equity Properties (Pvt) Ltd supra*; *Spar Harare Private Limited t/a Spar Eastern Region* v *Munava Enterprises Private Limited & Ors supra*; *Mazengwa* v *Njanike supra*; *Mavindidze & Anor* v *Mukonoweshuro* 2010 (1) ZLR 191 (H); and *Sibanda* v *Mushapaidze* 2010 (1) ZLR 216 (H). I took the view that the matter ought to be removed from the roll of unopposed matters. Counsel for the applicant then requested that the order specifically captures that the matter had been referred to the opposed roll, 'for clarity', a request that counsel for the respondents had no issues with.

[13] With regards costs, counsel for the applicant submitted that since there was a difference of opinion on the question, it was appropriate that there be no order as to costs. Counsel for

the respondent agreed with this. It was on the foregoing basis that I removed the matter from the roll of unopposed matters and referred it to the roll of opposed matters with no order as to costs.

THE APPLICATION FOR LEAVE TO APPEAL

[14] Clearly unhappy with the removal of the matter from the unopposed roll, the applicant launched this application for leave to appeal which has been opposed by the first to the fourth respondents. I have already related to the grounds upon which the applicant intends to appeal against my decision. The applicant argues that the matter warrants the granting of leave because the intended appeal enjoys reasonable prospects of success because the order is contrary to the procedural framework governing the conduct of provisional sentence proceedings. Further, the intended appeal raises a point of law of considerable importance, namely the correct procedure to be followed where opposition is filed in provisional sentence matters. Finally, my order undermines and defeats the very purpose and essence of provisional sentence proceedings, which are designed to provide speedy relief to a plaintiff armed with liquid documents.

[15] The respondents oppose the application. In *limine*, they argue that the application is fatally defective because instead of giving a *dies induciae* of two days within which to oppose the application, it gives them ten days to do so. The respondents argue, further that the application must have been made orally, failing which the applicant was required to explain why it failed to make an oral application, but in this case, the applicant, having made a written application, failed to give that explanation. Thirdly, the respondents argue that the ruling sought to be appealed against, being a procedural ruling, not a judgment or order for the purposes of s43 of the High Court Act [*Chapter 7:06*], is not appealable, even with leave.

[16] On the merits, the respondents make the argument that regardless of whether the matter had been opposed or not, it ought not to have been set down on the unopposed roll so removal from the roll was inevitable.

ORAL SUBMISSIONS BEFORE THE COURT

[17] Mr. *Madhuku*, for the applicant, argued on two points namely that there were reasonable prospects of success on appeal and secondly, that the appeal raised an important point of law deserving an authoritative determination by the Supreme Court. In relation to the preliminary points, it was submitted that r94 of the High Court Rules does not stand in the way once a party is served with an application for leave to appeal, as long as they were given time within which to respond. Mr *Madhuku* conceded that the founding papers did not explain why leave to appeal was not sought immediately after the hearing. He proceeded to make an oral application for condonation, stating that the decision to appeal was arrived at after reflecting on the determination and seeking legal counsel, so the application could not be made orally at the hearing.

[18] On the point that the decision was not appealable, he submitted that there are certain rulings that are not appealable but those are rulings made in the course of the proceedings and the proceedings are continuing for example a ruling on who should begin and rulings on whether you should be limited to five minutes or you are given an additional one minute to make submissions before the court. Those rulings are not appealable because they have no effect on the proceedings but where a ruling has the effect of terminating a hearing at the given time and changing its course, it would constitute a fundamental decision that was appealable upon leave being granted.

[19] Mr *Madhuku* brought to my attention that the decision by WAMAMBO J in *Kreamon Investments (Pvt) Ltd* v *FMC Finance (Pvt) Ltd & 3 Ors* HH898-25 had now been handed down, and its essence was that matters for provisional sentence ought to be heard on the unopposed roll.

[20] At the invitation of the court, Mr *Madhuku* submitted that r14 (7) seemed to suggest, on the face of it, that if a Notice of Opposition is filed, the procedure would require an answering affidavit and subsequently heads of argument, therefore the process mutates to an opposed matter. He submitted that r14 (7) is not supposed to be given that meaning and that whatever is included in the notice of opposition, was supposed to be dealt with on the unopposed roll. I note in passing that he was however not very definite on how that would pan out in the event that the issues raised in the opposing papers needed a response through an answering affidavit.

[21] With regards the proposed grounds of appeal *vis a vis* some decisions that referred opposed summons for provisional sentence to the opposed roll, and the specific request by applicant's counsel in the proceedings in the main matter that for clarity, the order specifies that the matter was referred to the opposed roll , Mr *Madhuku* submitted that the referral to the Supreme Court was not on the basis that the order issued by the court was totally wrong, but that the Supreme Court may have a different view in light of the divergent decisions.

[22] He submitted that the first ground of appeal summarised the essence of the appeal and that could be the only ground of appeal. Mr *Madhuku* accepted that the relief sought may not be accurate in light of the submissions and the position taken by the respondent in the main matter. He submitted that the relief could be amended to reflect that read the appeal be allowed and the matter be remitted to the court a *quo* for a determination on the unopposed roll. Consequently, leave to appeal could be granted on condition that the notice of appeal be amended. He persuaded the court to appreciate the importance of the matter to the ease of doing business.

[23] *Per contra*, Mr *Mutero*, who appeared for the respondents, contended that the submission that where an interlocutory ruling has the effect of terminating proceedings at that particular point such a ruling was appealable was not the correct position of the law. He submitted that in *Mwatsaka* v *ICL Zimbabwe* 1998 (1) ZLR 1 (H), the court found that an order referring a matter to trial was not appealable even with leave. He submitted that the ruling referring the matter to the opposed roll was not appealable.

[24] On the question of a defective *dies induciae*, it was submitted that on the authority of *Nyathi* v *The Trustees For The Time Being Of The Apostolic Faith Mission of Africa & Ors* SC63-22, the applicants could not have gone outside the *dies induciae* provided for in the Rules. Mr *Mutero* submitted that to the extent that the applicant did not explain why it did not make an oral application, the application was fatally defective and Mr *Madhuku* could not make submissions from the bar as to why the application was not made.

[25] On the merits, the respondents submitted that r14 (6) was not complied with. It was submitted that in terms of r14 (7), once a notice of opposition had been filed, the rules relating to the service of a notice of opposition, and to the filing and service of answering

affidavits kick in. He submitted that a notice of opposition could introduce factual issues which could only be related to in an answering affidavit. The respondents had not prayed for the matter to be referred to the opposed roll because it understood that in terms of r14(6), there was a different roll for provisional sentence matters but it was the applicant's specific request that the order captures that the matter be referred to the opposed roll.

[26] During discourse with the court, Mr *Mutero* submitted that a party who makes an application must advise his opponent of his full and correct procedural rights. This was a peremptory requirement that could not be disregarded simply because *Blakey Investments (Pty) Ltd* v *Delta Beverages (Pvt) Ltd* HH388-23 held that the Commercial Court can be regarded as some kind of a half way house between the strict formalism of the other Divisions of the High Court, and the liberalism of the alternative dispute resolution mechanism such as arbitration. Upon being asked if he was insisting on the preliminary points in light of the potential importance of the matter, he submitted that the first two preliminary points were not dispositive of the matter, but the third one was. If the court agreed that the first two preliminary points were merited, the matter could be struck off the roll and the applicant could still launch another application. As to the importance of the matter, Mr *Mutero* acknowledged that many determinations had been made on the procedure in provisional sentence matters but on the authority of *Chikafu* v *Dodhill (Pvt) Ltd & Anor* SC28-09, there were prospects of success, to the limited extent of the divergent views. Mr *Mutero* submitted that even if the court could overlook the first two preliminary points, the court still had to deal with the question of whether or not the ruling was appealable before deciding whether or not leave to appeal was warranted in the circumstances of this matter.

[27] Replying to Mr *Mutero*'s submissions, Mr *Madhuku* briefly submitted that the *dies induciae* of two days was the minimum and the decision in the *Nyathi* case was only applicable to the Supreme Court. Further, the principle that condonation could be sought orally was a common law principle. Mr *Madhuku* submitted that the court ought to overlook the technical objections in light of the importance of the case, which point the respondents were also in agreement with.

[28] Post the oral submissions, I requested the parties to file supplementary heads of arguments on the import of r14 (7) of the High Court Rules to the provisional sentence regime. I wish to express my gratitude to counsel for their industry.

ISSUES FOR DETERMINATION

[29] In the case of *Gwaradzimba N.O* v *C J Petron and Co (Pty) Ltd* 2016 (1) ZLR 28 (S), at p 32 B, the Supreme Court pronounced that a court must generally determine all the issues raised by the parties "unless the issue so determined can put the whole matter to rest."

[30] In *casu*, I take the robust view that two issues must be disposed of first as they are dispositive of the application. These are:

1. Whether or not the application is fatally defective; and
2. Whether or not the interlocutory order is appealable.

WHETHER OR NOT THE APPLICATION IS FATALLY DEFECTIVE

The application gives a wrong dies induciae

[31] A reading of r94 (3) of the High Court Rules, 2021 as read with r94 (8) of the same rules and r4(2) of the High Court (Commercial Division) Rules, 2020, suggests that a copy of an application for leave to appeal shall be served on the respondent immediately after it is filed with the registrar and whereupon the respondent may file written submissions within two days of the date of service on the respondent. It has been argued that the case of *Nyathi supra* is authority for the proposition that an application which provides for a *dies induciae* outside of the rules is fatally defective. The question that has exercised my mind is whether the applicants provided a *dies induciae* that it outside of the rules.

[32] It will be noted that in *Nyathi supra*, the Supreme Court relied on the provisions of r43 (5) of the then Supreme Court Rules, 2018 which was worded as follows:

> "The respondent shall be entitled, within three days of service, to file with the registrar his or her opposing affidavits, which shall also be served on the applicant and the applicant shall thereafter be entitled, within three days, to file with the registrar his or her answering affidavits."

[33] It will also be noted that while r94 (3) of the High Court Rules speaks to the filing written submissions and even then, seems to give the respondent the choice to file or not to file

those written submissions, r43(5) of the Supreme Court Rules, 2018 clearly provided for the filing of opposing affidavits and the *dies induciae* for doing so. From my reading of the two rules, and to the extent related to above, there is a distinction in the wording of the provisions such that the facts and the circumstances in the *Nyathi* case may be distinguishable from the facts and the circumstances of the present matter.

[34] In my view, r94 (3) cannot be relied on to argue that the *dies induciae* for filing opposing affidavits in an application of this nature should be two days. Clearly, the rule provides for the option to file written submissions, not opposing affidavits. In my further view, once it is accepted that the rule provides for filing of written submissions, reliance should be had to the provisions for applications as provided for in the High Court (Commercial Court) Rules, to guide on the *dies induciae* for filing notices of opposition. I take the view that once an applicant files a court application for leave to appeal, the provisions of r31 of the High Court (Commercial Division) Rules are triggered. In terms of that rule, the time within which a respondent in a court application may be required to file a notice of opposition and opposing affidavits shall be 10 (ten) days, exclusive of the day of service.

[35] I therefore find that there was nothing irregular about the applicant giving the respondents ten days within which to file notices of opposition. The preliminary point is without merit and is accordingly dismissed.

Failure to give reasons for not making an oral application

[36] Rule 94 (1) as read with r94 (8) of the High Court Rules provides that in a civil matter in which leave to appeal is necessary, an application for leave to appeal may be made by any party orally immediately after the order. Where an oral application has not been made, an applicant can file a written application within twelve days of the order, provided that the applicant shall state the reason why an oral application was not made.

[37] In *casu*, it is accepted that the reason for failure to adhere to this peremptory provision of the rules was not complied with. This complaint initially arose in the respondents' opposing papers. When the applicant filed its heads of argument, it adopted a cavalier approach and submitted that this issue was inconsequential in view of the fact that parties were in the Commercial Division. It then submitted that condonation would be sought at the hearing of the matter. Such an attitude was ill-advised and very unfortunate, because the requirement

to give reasons is a peremptory requirement which cannot be relegated to be one of no consequence. Be that as it may, at the hearing of the matter Mr *Madhuku* then explained why the rules were not complied with and sought condonation for the applicant's non-compliance with the rules.

[38] GUVAVA J (as she then was) reiterated the need to comply with the Rules in the case of *Jambo* v *Church of the Province of Central Africa & Ors* HH 329-13 in the following terms: -

> "This court has stated in a number of judgments of this court that parties are obliged to comply with the rules. Where there is a non-compliance the applicant must apply for condonation and give reasons for such failure to comply with the rules. (See also *Jensen* v *Avacalos* 1993 (1) ZLR 216 (S))

[39] I observe that r7(a) of the High Court Rules as read with r4 (2) of the High Court (Commercial Division) Rules, gives a judge the discretion to condone a departure from the Rules, if the judge is satisfied that the departure is required in the interests of justice. Accordingly, in determining the question of whether or not the application is fatally defective, I considered what prejudice, if any, was occasioned by the defect in the papers? I noted that despite the defect, the respondents have been able to effectively defend this matter.

[40] I therefore take the view that, bearing in mind that the Rules are made for the court and not the court for the Rules, this is an appropriate case, in the interests of disposing of the matter, to overlook the defect and, in the spirit of r4 (3) of the High Court (Commercial Division) Rules, grant the condonation sought by the applicant and accept the oral explanation given by Mr *Madhuku* at the hearing of the matter. The preliminary point is accordingly dismissed.

WHETHER OR NOT THE INTERLOCUTORY ORDER IS APPEALABLE

[41] Section 43 of the High Court Act provides for the right of appeal from the High Court in civil cases. For the purposes of this matter, the relevant subsections read:

> **"Right of appeal from High Court in civil cases**
> (1) Subject to this section, an appeal in any civil case shall lie to the Supreme Court from any judgment of the High Court, whether in the exercise of its original or its appellate jurisdiction.
> (2) No appeal shall lie—
> (*a*) ……..;

(*b*)……..;
(*c*) …….;
(*d*) from an interlocutory order or interlocutory judgment made or given by a judge of the High Court, without the leave of that judge or, if that has been refused, without the leave of a judge of the Supreme Court, except in the following cases—
(i) where the liberty of the subject or the custody of minors is concerned;
(ii) where an interdict is granted or refused;
(iii) in the case of an order on a special case stated under any law relating to arbitration."

[42] The matter under discussion involves an interlocutory order. As to the meaning of an interlocutory order, the Supreme Court, in *Al Shams Global BVI Ltd v Deposit Protection Corporation & Ors* SC52-22 at p10-11, pointed out that:

> "There is little doubt that the phrase "interlocutory order" is one that has vexed the legal mind for a considerably long time. Its definition has eluded the courts but there is a very helpful discussion of it by DEVITTIE J in *Mwatsaka v ILC Zimbabwe* 1998 (1) ZLR 1(H) where the learned Judge reviewed a number of authorities discussing the phrase "interlocutory orders."
>
> He referred to the reasoning of CORBETT JA (as he then was) in *South Cape Corp* v *Engineering Management Services* 1977(3) SA 534 (A) at 549 where the court remarked:
>
> "I think, nevertheless, the general effect of this series of decisions, together with consistent judgments of other courts, may be summarized as follows:
>
> (a) In a wide and general sense, the term 'interlocutory' refers to all orders pronounced by the court, upon matters incidental to the main dispute, preparatory to, or during the progress of, the litigation. But orders of this kind are divided into two classes:
> (i) Those which have a final and definitive effect on the main action; and
> (ii) those known as simple (or purely) interlocutory orders proper, or 'interlocutory orders proper' which do not (see generally *Bell v Bell* 1908 T S 887 at p 890, *Steytler NO. v Fitzgerald supra* at pp 303, 311, 325-6, 342, *Globe & Phoenix Gold Mining Co. Limited vs Rhodesian Corp Ltd* 1932 AD 146 at pp153)."
>
> The court went on at p 8 C, relying on the authority of the *Pretoria Garrison*[1] case, *supra, to make the point that the test as to whether an interlocutory order is one which is preparatory or procedural and therefore not appealable unless it is such that it disposes of any of the issues or any portion of the issue in the main action or suit or it irreparably anticipates or precludes some of the relief which would or might be given at the hearing*." [Emphasis added]

[43] Thus, on the authority of *Al Shams Global BVI Ltd* v *Deposit Protection Corporation & Ors supra* and *Mwatsaka* v *ICL Zimbabwe supra*, the position of the law is that where an interlocutory order is preparatory or procedural, it is not appealable. It would be appealable if it disposes of any of the issues or any portion of the issue in the main action. It would

[1] Pretoria Garrison Institutes v Danish Variety Products 1948 (1) SA 839 (A)

also be appealable if it irreparably anticipates or precludes some of the relief which would or might be given at the hearing.

[44] The reason for this restriction is clear. It is motivated by the desire to avoid a multiplicity of piecemeal appeals: *Mwatsaka* v *ICL Zimbabwe supra* at p.13H.

[45] In *Jesse* v *Chioza* 1996 (1) ZLR 341 (S), a question arose as to whether the 'order' referring a matter to trial for the hearing of oral evidence amounted to a judgment and was decisive or definitive of the rights of the parties and had the effect of disposing of the whole, or at least a portion of the relief claimed by one of them, or it was a mere ruling which was a direction as to the manner in which the case should proceed. After considering a number of authorities, the court of appeal concluded at p.346 E that: -

> "On this well settled expression of the law, with which I respectfully agree, it is clear that the directive given by SANDURA JP was not a judgment. It did not decide the merits. It was merely a procedural ruling that oral evidence was necessary before the factual disputes could be determined. Consequently, and by virtue of s43 (1) of the (High Court) Act, it was not appealable."

[46] In this matter, Mr *Madhuku* argued that as long as an interlocutory order terminates proceedings at that moment, it is appealable. In light of the authorities I have referred to above, his argument does not seem to find support in the law. In addition, I am of the view that Mr *Madhuku*'s submission that the category of interlocutory orders falling into non-appealable orders are those that for instance rule on who has the duty to begin or the number of minutes in which a litigant can make submissions is a much narrower and very limited scope of non-appealable orders. From a reading of the authorities, it occurs to me that as long as an interlocutory order is a procedural ruling that does not decide on the merits and as long as it is such that it does not dispose of any or a portion of the issues in the main action or suit or it irreparably anticipates or precludes some of the relief which would or might be given at the hearing, it is not appealable.

[47] Turning to the order in this matter, it did not decide on the merits of the matter, neither did it dispose of any of the issues in the main action either in whole or in part. It did not irreparably anticipate or preclude some of the relief which would or might be given at the hearing. The order did not give any definitive or final or even interim judgment in regard to the relief claimed by the applicant in the main matter. The order was merely a direction as

to the manner in which the case should proceed. A referral to the opposed roll is more or less similar to a referral to trial. Case authority has already settled that a referral to trial is not appealable, and the same should follow for a referral to the opposed roll.

CONCLUSION

[48] The parties in this matter acknowledge that from the authorities coming out of the High Court, there is a difference of opinion on the procedure to follow in dealing with an opposed summons for provisional sentence. The cases of *Zimbank v Interfin Merchant Bank of Zimbabwe Ltd* 2005 (1) ZLR 114 (H); *Al Shams Global BVI Ltd v Equity Properties (Pvt) Ltd supra*; *Spar Harare Private Limited t/a Spar Eastern Region* v *Munava Enterprises Private Limited & Ors supra*; *Mazengwa* v *Njanike supra*, *Mavindidze & Anor* v *Mukonoweshuro supra*; *Sibanda* v *Mushapaidze supra*, *Zimbabwe Leaf Tobacco Co (Pvt) Ltd* v *Cooke* 2016 (2) ZLR 673 (H) and to an extent, the most recent decision in *Kreamon Investments (Pvt) Ltd* v *FMC Finance & Ors supra*, demonstrate the divergent positions that have been taken by the High Court in opposed provisional sentence matters. Indeed, there is cause to argue that there is need to have a definitive pronouncement on the issue.

[49] However, the court is constrained, by operation of the law and guiding judicial precedent, to overlook the nature of the order issued in this matter. The nature of the order is insufficient to overcome the established principles regarding appealable interlocutory orders. The respondents' preliminary point is therefore merited.

[50] I digress momentarily to observe that s4 (5) of the High Court Act seems to have a mechanism by which this question can be definitively dealt with and a binding position reached. It provides:

> (5) If a matter being heard by the High Court involves a difficult question of law or if at any stage during the hearing of a matter by one or more judges such a question arises, the presiding judge may direct that the hearing of that matter or the hearing in respect of that question shall proceed before such greater number of judges than two as may be determined by the Chief Justice or the Judge President, and thereupon the decision of the majority of such judges shall be the decision of the High Court.

[51] In my opinion, it would appear that an apt opportunity arising, a litigant who is so inclined can persuade the High Court to proceed in terms of s4 (5) of the Act and motivate for a greater number of judges to sit and determine this question. However, this is not an issue I have

been called upon to determine and would leave that discourse open for proper judicial ventilation at an opportune moment.

[52] Reverting to the issue at hand, on the basis of the foregoing reasons, the third preliminary point is upheld. It is also dispositive of this matter. Regarding costs, given the consensus in this matter that there is a divergence of opinion on the procedure in opposed provisional sentence matters, I take the view that no party should be mulcted with the costs of this application.

ORDER

[53] In the result, the following order is made:

1. The first and second preliminary points be and are hereby dismissed.
2. The third preliminary point be and is hereby upheld.
3. The application for leave to appeal be and is hereby dismissed.
4. There shall be no order as to costs.

MUSHURE J:……..

Atherstone & Cook, applicant's legal practitioners
Lawman Law Chambers, respondents' legal practitioners